

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TRISTAN DALY-FELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, MAYOR ERIC ADAMS,
NYPD POLICE COMMISSIONER KEECHANT
SEWELL, NYPD POLICE OFFICER SEAN COLLINS
(BADGE NO. 29210), NYPD POLICE OFFICER
LESTER HAYNES (BADGE NO. 7304), NYPD
OFFICER ANTHONY GIUDICE (BADGE NO.
15765), NYPD POLICE OFFICER CHRISTOPHER
STELMACH (BADGE NO. 19816), AND NYPD
POLICE OFFICER JAMES ZEBRO (BADGE NO.
2610),

Defendants.

-----X

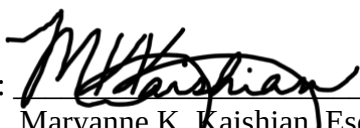
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action
and to serve a copy of your Answer on the plaintiff's attorney within 20 days after the service
of this Summons, or within 30 days after service of this Summons is complete if this
Summons is not personally delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be
taken against you for the relief demanded in the complaint, together with the interest, costs
and/or disbursements of this action.

Dated: Brooklyn, New York
September 4, 2024

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

By: 
Maryanne K. Kaishian, Esq.

Index No.:

SUMMONS

Plaintiff designates
KINGS COUNTY
as the Venue and
place of trial.

The basis of Venue
is that a substantial
part of the conduct
giving rise to this
Complaint occurred
in Kings County.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

MAYOR ERIC ADAMS
100 Church Street
New York, NY 10007

NYPD POLICE COMMISSIONER KEECHANT SEWELL
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD POLICE OFFICER SEAN COLLINS (BADGE NO. 29210)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

NYPD POLICE OFFICER LESTER HAYNES (BADGE NO. 7304)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

NYPD OFFICER ANTHONY GIUDICE (BADGE NO. 15765)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

NYPD POLICE OFFICER CHRISTOPHER STELMACH (BADGE NO. 19816)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

-and-

NYPD POLICE OFFICER JAMES ZEBRO (BADGE NO. 2610)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

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POLICE OFFICER CHRISTOPHER STELMACH (BADGE NO.
19816), and NYPD POLICE OFFICER JAMES ZEBRO (BADGE
NO. 2610),

Defendants.

-----X

Case No.:

VERIFIED
COMPLAINT

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Plaintiff, TRISTAN DALY-FELL, by his attorneys, KAISHIAN & MORTAZAVI LLC,
by MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the Courts of
the State of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. At approximately 4:00 PM on June 6, 2023, Plaintiff Tristan Daly-Fell ("Plaintiff" or "Mr. Daly-Fell), a 19-year-old resident of Kings County, exited the passenger side of a lawfully parked vehicle to return home when Defendants NYPD Police Officers Collins, Haynes, Giudice, Stelmach, and Zebro suddenly approached and detained him within the confines of the NYPD's 75th Precinct without cause. These Defendants unlawfully stopped, searched, detained, and battered Mr. Daly-Fell, and further interfered with his right to lawfully record police activity in violation of New York City law. As a result of Defendants' conduct, Mr. Daly-Fell was deprived of his liberty and right to be free from unreasonable searches and seizures and suffered physical and emotional injuries, the full extent of which is not yet known.

2. Mr. Daly-Fell now brings the instant case before this Court for, *inter alia*, unreasonable search and seizure, excessive force, failure to train, negligence, and interference with protected recording activity.

PARTIES

3. At the time of the events giving rise to this Complaint, **PLAINTIFF TRISTAN DALY-FELL (“Plaintiff” or “Mr. Daly-Fell”)** was a 19-year-old resident of Kings County in the City and State of New York.

4. At all relevant times mentioned herein, **DEFENDANT CITY OF NEW YORK (“Defendant City” or “New York City”)**, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

5. **DEFENDANT NEW YORK CITY MAYOR ERIC ADAMS (“Defendant Adams”)** was at all times relevant to this Complaint the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued in his official capacity.

6. **DEFENDANT NYPD COMMISSIONER KEECHANT SEWELL (“Defendant Sewell”)** was at all times relevant to this Complaint the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring,

training, supervision, and discipline with respect to NYPD officers' performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued in her official capacity.

7. **DEFENDANTS NYPD POLICE OFFICERS SEAN COLLINS (BADGE NO. 29210), LESTER HAYNES (BADGE NO. 7304), ANTHONY GIUDICE (BADGE NO. 15765), CHRISTOPHER STELMACH (BADGE NO. 19816), and JAMES ZEBRO (BADGE NO. 2610)**, at all times hereinafter mentioned, were employed by Defendant City as police officers with the NYPD and was assigned to the NYPD's 75th Precinct in Kings County. These Defendants are sued in their individual and official capacities.

8. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

9. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

10. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

11. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

12. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

13. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

14. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

15. Each individual Defendant is sued in her or his individual and official capacities.

JURISDICTION and CONDITIONS PRECEDENT

16. This matter is properly before this Court as a majority of the incidents occurring herein took place in Kings County, City and State of New York.

17. Plaintiff timely served Notices of Claim on the municipal Defendant within ninety (90) days of the accrual of the relevant claims complained of herein and complied with all conditions precedent to commencing an action under New York State law.

18. The damages amount sought by Plaintiff exceeds the jurisdiction of all lower courts.

19. Mr. Daly-Fell was examined by the Defendant City of New York pursuant to GML §50-H on September 18, 2023.

20. At least thirty days have elapsed since service of Plaintiff's Notices of Claim and adjustment and payment thereof has been neglected or refused.

21. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State law.

STATEMENT OF FACTS

22. At the time of the events giving rise to this Complaint, Plaintiff Tristan Daly-Fell was a 19-year-old resident of Kings County, City and State of New York. Plaintiff currently resides in Bronx County, City and State of New York.

23. On or about June 6, 2023, at approximately 4:00 PM, Mr. Daly-Fell occupied the front passenger seat of a legally parked vehicle near the intersection of Blake Ave. and Hinsdale St., near 343 Hinsdale St., in Kings County.

24. When Mr. Daly-Fell exited the vehicle to return home, Defendants PO COLLINS, HAYNES, GIUDICE, STELMACH, and ZEBRO, all believed to be assigned to the NYPD's 75th Precinct in Kings County, exited an unmarked police car and approached Mr. Daly-Fell and the vehicle's driver, Khamari Thorpe.

25. Mr. Daly-Fell had not committed any crimes or violations.

26. The vehicle's driver had not committed any crimes or violations.

27. Without cause, Defendant Zebro ordered Mr. Daly Fell to stop approximately one-half block from the location where the vehicle was parked.

28. Mr. Daly-Fell complied.

29. These Defendants ordered Mr. Daly-Fell to return to the legally parked vehicle, despite having no authority or cause to do so.

30. Mr. Daly-Fell complied with all lawful orders issued by these NYPD members.

31. Mr. Daly-Fell also used his cellphone to lawfully record this encounter with Defendants.

32. At no time did Mr. Daly-Fell interfere with lawful governmental administration.

33. Mr. Daly-Fell lawfully inquired as to the cause of his stop and the cause for Defendant Zebro ordering him to return to the lawfully parked vehicle.

34. These NYPD Defendants refused to articulate a reason for stopping Mr. Daly-Fell and his companion or for ordering the two young men to return to a parked vehicle.

35. Defendant Zebro informed Mr. Daly-Fell that he was not free to leave.

36. Defendant Zebro repeatedly demanded Mr. Daly-Fell's photo identification despite no cause for demanding the same, and despite no lawful authority to require the same of a vehicle's passenger in New York State.

37. Defendants Zebro, Collins, Haynes, Giudice, and Stelmach detained Mr. Daly-Fell without cause or justification.

38. Suddenly, and without cause, Defendants Stelmach and Zebro threw Khamari Thorpe to the ground and assaulted him while Mr. Daly-Fell begged them to stop this assault and to explain the cause of their detention.

39. Defendants Haynes then forcibly shoved Mr. Daly Fell and restricted his movement by grabbing Mr. Daly-Fell's shoulders and arms and pushing Mr. Daly-Fell into a nearby fence gate, striking the right side of his body and pinning him against the hard surface.

40. Defendant Haynes caused Mr. Daly-Fell pain to the right side of his chest and ribs, back, right shoulder, and right arm, bruising, swelling, and reduced range of motion.

41. Defendants Haynes, Collins, and Giudice then surrounded Mr. Daly-Fell and continued to unlawfully detain him by forcibly grabbing his person and unlawfully searching his clothing.

42. Though this incident took place during daylight hours, Defendant Haynes repeatedly shined his flashlight directly into Mr. Daly-Fell's recording cellphone, interfering with Mr. Daly-Fell's right to legally record the interaction.

43. Defendant Haynes shoved Mr. Daly-Fell to prevent him from legally recording the Defendants' conduct and lawfully advocating for Khamari Thorpe, who was seriously injured by Defendants.

44. Defendants Collins, Haynes, Giudice, Stelmach, and Zebro each attempted to prevent Mr. Daly-Fell from recording by physically obstructing his cell phone camera.

45. These Defendants retaliated against Mr. Daly-Fell for recording Defendants' assault upon Khamari Thorpe and for lawfully questioning the basis for Defendants' conduct by detaining, searching, and/or assaulting Mr. Daly-Fell.

46. Defendants Collins, Haynes, and Zebro unlawfully searched Mr. Daly-Fell by placing their hands inside of his clothing and grabbing his person repeatedly.

47. No criminal charges were filed against Mr. Daly-Fell.

Damages

48. Defendants' conduct caused Mr. Thorpe to miss two (2) days of his internship program.

49. Defendants' conduct caused Mr. Daly-Fell to suffer from anxiety related to leaving his home for fear of being stopped, detained, and/or assaulted by police without any justification or cause.

50. Defendants' conduct caused Mr. Daly-Fell to suffer psychological damages including loss of sleep, nightmares, depression, and emotional anguish. The full extent of these injuries is not yet known, and their effects are ongoing.

51. Defendants' conduct caused Mr. Daly-Fell to suffer physical injuries including reduced range of motion in his right shoulder and arm, pain and swelling to his back, bruising, swelling, and lacerations. The full extent of these injuries is not yet known, and their effects are ongoing.

52. Defendants have greatly interfered with Mr. Daly-Fell's enjoyment and engagement in daily life.

53. The full extent of Mr. Daly-Fell's injuries and damages is not yet known.

FIRST CLAIM FOR RELIEF

The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure

***Against Defendant City and Defendants Collins, Haynes, Giudice, Stelmach, and Zebro
Pursuant to New York City Administrative Code Title 8, Chapter 8, § 8-801, et seq.***

54. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

55. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

56. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

57. The NYPD Defendants, including Defendants Collins, Haynes, Giudice, Stelmach, and Zebro, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

58. Pursuant to § 8-802, et seq., NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

59. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

60. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

61. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

62. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

SECOND CLAIM FOR RELIEF

Interference with the Right to Record Police Activities

Against Defendants Collins, Haynes, Giudice, Stelmach, and Zebro Pursuant to New York City Administrative Code Title 14, Chapter 1, § 14-189, et seq.

63. Defendants were "officers" within the meaning of § 14-106.

64. Plaintiff was lawfully recording Defendants while they engaged in police activities under the color of law.

65. Plaintiff has the right to record police activities and maintain custody and control of any such recording and of any property or instruments used in such recording.

66. At no time did Plaintiff interfere with official and lawful police functions.

67. Defendants interfered with Plaintiff's ability to record by:

- a. Preventing or attempting to prevent the recording of police activities;
- b. Threatening or making any effort to intimidate a person recording police activities;
- c. Stopping and searching Plaintiff because he recorded police activities; and/or
- d. Unlawfully seizing Plaintiff's person or property.

68. Defendants interfered with Plaintiff's ability to record police activity and retaliated against him for engaging in the same.

69. Pursuant to NYC Admin. Code § 14-189, Plaintiff is entitled to remedies for Defendants' conduct in interfering with Plaintiff's right to record police activities, including, *inter alia*, punitive damages, declaratory, injunctive relief, and attorney's fees.

THIRD CLAIM FOR RELIEF

Excessive Force

Against Defendants Collins, Haynes, Giudice, Stelmach, and Zebro Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

70. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

71. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

72. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

73. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiffs' Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

74. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

75. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

76. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to: policies of unlawful searches and seizures; excessive uses of force; interference with lawful recording; restrictions on freedom of association; and unlawful street and/or vehicular stops, searches, and seizures.

77. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;
- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Adams and Defendant Sewell, and other policymaking officials;
- d. Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

78. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

FIFTH CLAIM FOR RELIEF**Failure to Train and/or Supervise**

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

79. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

80. Defendant City, and its agents Defendants Adams and Sewell, failed to train and supervise the Defendant NYPD Members.

81. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Daly-Fell's injuries.

82. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.

83. Defendants know that NYPD Members are certain to regularly encounter situations such as those described herein—including the police approach and/or arrest and/or search of civilians during street encounters—through the course of their employment.

84. Defendants knew that there is a history of wrongful conduct in these scenarios by NYPD Members.

85. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

86. Defendant Zebro has a significant history of wrongful conduct, including five (5) substantiated Civilian Complaint Review Board (CCRB) findings and multiple lawsuits against him.

87. Defendant Haynes has a significant history of wrongful conduct, including five (5) substantiated Civilian Complaint Review Board (CCRB) findings and multiple lawsuits against him, including for similar factual circumstances as those alleged herein.

88. Defendant Stelmach has a significant history of wrongful conduct, including eleven (11) substantiated Civilian Complaint Review Board (CCRB) findings and multiple lawsuits against him, including for similar factual circumstances as those alleged herein.

89. Defendant Collins has a significant history of wrongful conduct, including seven (7) substantiated Civilian Complaint Review Board (CCRB) findings and multiple lawsuits against him, including for similar factual circumstances as those alleged herein.

90. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations, coerced confessions, and physical and emotional injuries.

91. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

92. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

93. The harms suffered by Plaintiff are the direct result of Defendants' failures.

SIXTH CLAIM FOR RELIEF

Failure to Intervene

Against Defendants Collins, Haynes, Giudice, Stelmach, and Zebro Pursuant to 42 U.S.C. § 1983

94. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

95. Defendants witnessed and/or knew of the harmful conduct of fellow Defendants and merely observed and/or unreasonably ignored such conduct against Plaintiff.

96. At no time did any Defendants intervene in the deficient conduct of their colleagues or otherwise fulfil their specialized duty to protect Mr. Daly-Fell.

97. Defendant City and its employees and/or agents breached the existing duty to protect Plaintiff, and such inaction enabled and/or facilitated and/or exacerbated the harms caused by Defendants' conduct and suffered by Plaintiff.

SEVENTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

98. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

99. As a result of the conduct described herein, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

I. *Respondeat Superior*

100. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

II. Violations of the New York State Constitution

101. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I §§ 8 (free speech), 11 (equal protection) and 12 (security against unreasonable searches and seizures) of the New York State Constitution.

102. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 8, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

III. Assault and Battery

103. Defendants committed assault within the meaning of New York common law against Plaintiffs by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

104. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

105. Defendants did thereby inflict assault and battery upon the Plaintiff.

IV. Excessive Force

106. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

V. Unlawful Detention

107. By the actions described above, the police officials described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so.

108. Plaintiff was conscious of the confinement and it was undertaken by Defendants without Plaintiff's consent.

VI. Negligent Screening, Hiring, and Retention

109. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

110. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Daly-Fell's injuries.

111. Defendant City and its agents Defendants Adams and Sewell knew that the individual Defendants had a propensity for the conduct giving rise to Mr. Daly-Fell's injuries.

112. Defendants failed to adequately screen, hire, or retain employees in consideration of such employees' recognizable propensity for harm.

113. Such documented history of Defendants' conduct causing harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

114. Rather than removing or disciplining NYPD members who have harmed civilians by engaging in wrongful conduct during the course of their employment, Defendants have continued to employ and empower such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff.

115. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

VII. Negligence

116. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

VIII. Negligent Infliction of Emotional Distress

117. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

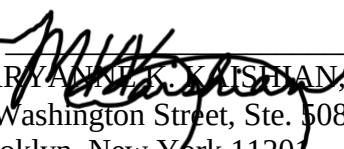
CONCLUSION AND DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. §1988, the NYC Admin. Code, § 8-801, *et seq.*, NYC Admin Code § 14-189, *et seq.*, and New York State common law; and
- v. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
September 5, 2024

KAISHIAN & MORTAZAVI LLC

By: 
MARYANNE K. KAISHIAN, ESQ.
55 Washington Street, Ste. 508
Brooklyn, New York 11201
T: (347) 662-2421
E: mk@kaishianlaw.com

ATTORNEY VERIFICATION

I, MARYANNE K. KAISHIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.
3. I make this verification because Plaintiff is not currently located in the County (Kings) where I maintain my office.

Dated: Brooklyn, New York
September 5, 2024

By: 
Maryanne K. Kaishian, Esq.
Kaishian & Mortazavi LLC
Attorneys for Plaintiff
55 Washington Street, Ste. 508
Brooklyn, New York 11201
T: (347) 662-2421
E: mk@kaishianlaw.com